

23PSCV02916 23PSCV02916

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Case Number: 23PSCV02916 Hearing Date: September 24, 2026 Dept: G

Plaintiffs

Chenxu Wang and Wei Lu's Motion for Sanctions to Enforce Compliance with
Court's Order

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiffs

Chenxu Wang and Wei Lu's Motion for Sanctions to Enforce Compliance with
Court's Order is GRANTED IN PART and DENIED IN PART.

BACKGROUND

This

is a Song-Beverly action arising out of the lease of an allegedly defective motor vehicle. On August 11, 2021, plaintiffs Chenxu Wang and Wei Lu (collectively, Plaintiffs) leased an SUV manufactured by defendant Volkswagen Group of America, Inc. (VW). Defendant Mesa Imports, LLC (the Dealership) allegedly failed to repair the vehicle.

On

September 20, 2023, Plaintiffs filed the Complaint, alleging causes of action for (1) breach of express warranty, (2) breach of implied warranty, (3) breach of Civil Code section 1793.2, and (4) negligent repair.

On

September 22, 2025, the parties informed the court that they settled the case.

On

July 10, 2026, Plaintiffs filed this motion to enforce order and for sanctions, which is unopposed. On September 2, 2026, the court continued the hearing on the motion for supplemental briefing. On September 11, 2026, Plaintiffs filed a supplemental brief.

On

August 26, 2026, Plaintiffs dismissed the action with prejudice.

The

motion is set for a continued hearing on September 24, 2026.

MOTION

TO ENFORCE ORDER

Plaintiffs move to enforce the court's March 19, 2026 order awarding attorney's fees and costs. For the following reasons, the motion is GRANTED.

Legal

Standard

The

court has the authority to compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein. (See Code Civ. Proc., § 128, subd. (a)(4).)

Discussion

Here,

the court ordered VW to pay plaintiffs \$85,505.62 in attorney's fees and costs. (See 3/19/2026 Min. Order, p. 1; see also 3/19/2026 Order Re: Court's Final Ruling, p. 1.) The court notes that its tentative ruling originally awarded \$87,215.62 in attorney's fees and costs, but the

court adjusted the award at the hearing.

(See 3/19/2026 Min. Order, p. 1; compare 3/19/2026 Order Re: Court's Final Ruling, p. 1 with 3/19/2026 Order Re: Court's Final Ruling, p. 9.) The court also notes that Plaintiffs' motion

to enforce order cites the original award from the tentative ruling and not the

amended award from the final order. (See

Mot., pp. 2, 4, 6, 8–9.) According to Plaintiffs, VW failed to comply

with the court's order to pay attorney's fees and costs. (See

Mot., pp. 4, 6.) VW did not file an opposition arguing that it

paid attorney's fees and costs. (See *Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1410, applying

a local rule to hold that "[t]he failure to file opposition creates an

inference that the motion or demurrer is meritorious.")

Therefore, the motion to enforce the court's order

is GRANTED. VW is ORDERED to

PAY Plaintiffs \$85,505.62 in attorney's fees and costs.

MOTION

FOR SANCTIONS

Plaintiffs

move for contempt sanctions and request additional attorney's fees. For the following reasons, the motion is GRANTED

IN PART and DENIED IN PART.

Legal

Standard

"A

trial court may order a party, the party's attorney, or both, to pay the

reasonable expenses, including attorney's fees, incurred by another party as a

result of actions or tactics, made in bad faith, that are frivolous or solely

intended to cause unnecessary delay."

(Code Civ. Proc., § 128.5, subd. (a).)

"Actions or tactics" include, but are not limited to, "the making or

opposing of motions or the filing and service of a complaint, cross-complaint,

answer, or other responsive pleading."

(Code Civ. Proc., § 128.5, subd. (b)(1).) "Frivolous" means "totally and completely

without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2).) The trial court may also "impose reasonable

money sanctions, not to exceed fifteen hundred dollars . . . payable to the

court, for any violation of a lawful court order by a person, done without good

cause or substantial justification.”

(Code Civ. Proc., § 177.5.) These

sanctions may only be imposed after giving notice and the opportunity to be heard. (See Code Civ. Proc., §§ 128.5, subd. (c); 177.5)

Discussion

As

a preliminary matter, the court raised the issue at a previous hearing on this motion whether it retains jurisdiction to rule on the sanctions motion after Plaintiffs dismissed the underlying action.

(See 9/2/2026 Min. Order, p. 1.)

Although a voluntary dismissal terminates the trial court's jurisdiction over the dismissed causes of action and parties, California courts recognize an exception for collateral statutory matters, including attorney's fees, costs, and sanctions. (See *Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, 1022–1023, ruling that the court retains the jurisdiction to determine and enforce “collateral statutory rights” post-dismissal or post-judgment, including motions for attorney's fees and sanctions.) Thus, the court finds that it has the jurisdiction to impose sanctions post-dismissal.

As

stated above, the court ordered VW to pay Plaintiffs for attorney's fees and costs, but VW failed to comply with the order.

(See Mot., pp. 4, 6.) Further,

VW failed to oppose the motion which gave notice that sanction would be sought pursuant to Code Civ. Proc., § 177.5. Additionally,

Plaintiffs provide an email from VW's counsel, admitting that the failure to comply was due to his “inadvertence.” (Castruita

Decl., Exh. C, p. 3.) Counsel's

inadvertence, however, does not constitute “good cause or substantial justification.” (Code Civ. Proc., §

177.5) Nevertheless, the court finds

that counsel's inadvertence does not rise to the level of “bad faith” to award Plaintiffs' reasonable expenses. (Code

Civ. Proc., § 128.5, subd. (a).)

Therefore,

the motion is GRANTED IN PART as to sanctions under CCP 177.5 and DENIED IN PART as to reasonable expenses.

VW is ORDERED to PAY the court \$250.00 in sanctions.

CONCLUSION

For

these reasons, the motion for sanctions to enforce compliance with court's order is GRANTED IN PART as to the request to enforce the court's order and impose contempt sanctions, DENIED IN PART as to the request for reasonable expenses, and HELD IN ABEYANCE IN PART as to the requests for prospective monetary sanctions and for an order to show cause re: contempt.

Defendant

Volkswagen Group of America, Inc. is ORDERED to PAY \$85,505.62 to plaintiffs Chenxu Wang and Wei Lu FORTHWITH, based on the court's March 19, 2026 order.

Defendant

Volkswagen Group of America, Inc. is further ORDERED to PAY \$250.00 in sanctions to the court pursuant to Code of Civil Procedure section 177.5 within thirty (30) days.